THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by the international conventions for the prevention and control of marine pollution, RECALLING ALSO that the International Conference on Ballast Water Management for Ships held in February 2004 adopted the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004 (the Ballast Water Management Convention) together with four conference resolutions, NOTING that regulation A-2 of the Ballast Water Management Convention requires that discharge of ballast water shall only be conducted through ballast water management in - Convention) together with four conference resolutions, NOTING that regulation A-2 of the Ballast Water Management Convention requires that discharge of ballast water shall only be conducted through ballast water management in accordance with the provisions of the Annex to the Convention, NOTING ALSO that regulation B-5.2 of the Ballast Water Management Convention provides that ships constructed in or after 2009 should, without compromising safety or operational efficiency, be designed and constructed with aview to minimize the uptake and undesirable entrapment of sediments, facilitate removal of sediments, and provide safe access to allow for sediment removal and sampling taking into account the guidelines developed by the Organization, NOTING FURTHER resolution MEPC.150(55) by which the Committee adopted the Guidelines on design and construction to facilitate sediment control on ships (G12) and resolved to keep these guidelines under review, HAVING CONSIDERED, at its sixty-third session, arevised text of the Guidelines on design and construction to facilitate sediment control on ships (G12), developed by the Ballast - resolved to keep these guidelines under review, HAVING CONSIDERED, at its sixty-third session, arevised text of the Guidelines on design and construction to facilitate sediment control on ships (G12), developed by the Ballast Water Review Group of the Committee at its sixty-second session, 1. ADOPTS the 2012 Guidelines on design and construction to facilitate sediment control on ships (G12), as set out in the Annex to this resolution; 2. INVITES Member Governments to apply the 2012 Guidelines (G12) as soon as possible or when the Convention becomes applicable to them; and 3. REVOKES the Guidelines (G12) adopted by resolution MEPC.150(55). RESOLUTION MEPC.209(63) Adopted on 2 March 2012 2012 GUIDELINES ON DESIGN AND CONSTRUCTION TO FACILITATE SEDIMENT CONTROL ON SHIPS (G12)MEPC 63/23 Annex 3, page 2 I:\MEPC\63\23.doc ANNEX 2012 GUIDELINES ON DESIGN AND CONSTRUCTION TO FACILITATE SEDIMENT CONTROL ON SHIPS (G12)